

PHILLIPS v. RADER-COLEMAN, et al

22CV46116

**PLAINTIFFS' MOTION FOR JUDGMENT
ON THE PLEADINGS**

Before the Court is a motion for judgment on the pleadings ("MJOP") filed by Plaintiffs/Cross-Defendants Kelly Lynn Phillips ("Kelly Lynn") and Richard Phillips ("Richard") ("Plaintiffs")¹ against the First Amended Cross-Complaint ("FACC") filed by Defendant Sara Ann Rader-Coleman ("Rader").

The Court grants Plaintiffs' Request for Judicial Notice.

I. Factual Background

This case involves a lengthy dispute over a gravel roadway that traverses over neighboring properties.

The "Rader Property" is a 160-acre parcel of real property located in the unincorporated area of Calaveras County, California. (FACC ¶ 1.) Rader asserts that she obtained her interest in the Rader Property upon the death of her grandfather, Jack Rader on January 25, 2012 and awarded to her by the Final Distribution of the Estate by the probate court on or about February 19, 2013. (*Id.* ¶ 2.) (Probate Case No. 12-PR-7340.). Her interest was recorded on February 20, 2013. (*Ibid.*) At the time, Rader was married to Addison Coleman but upon their divorce, he relinquished his rights to the Rader Property. (*Ibid.*) Rader contends that the Rader Property has been in her family for six generations and that she has lived on the house on said property since 1974. (*Id.* ¶ 3.) Rader also contends that for fifty years, the Rader family has openly and continuously used the access road without interference.

Kelly Lynn is the owner of adjacent property to the west of the Rader Property ("Phillips Property.") (FACC ¶ 4.) Rader alleges that Kelly Lynn became owner of the Phillips Property as a gift from family. (*Id.* ¶ 6.) title issues -- is disputed. (UMF 5.)

The Rader Property is accessed via a roadway and public utility easement on Dorray Road through the Phillips Property. (FACC ¶ 7.) Until 1967, Dorray Road served the Rader Property as a public road, at which time the public rights were abandoned but the private access easement rights continued unabated. (*Ibid.*) Dorray Road across the

¹ Given the common surnames of the parties, first names are used. No disrespect is intended.

Phillips Property has always provided access to the Rader Property from the time the house was placed there in 1974. (*Ibid.*)

Dorray Road is a road about 12 feet wide that leads northeasterly from Highway 26 east of Mokelumne Hill, specifically about 800 feet east of the intersection of Highway 26 with Ponderosa Way (south). (FACC ¶ 8.) Dorray Road is a county road that serves several properties for approximately ½ mile, before entering the Phillips Property and then proceeding to the Rader Property (*Ibid.*)

Rader alleges that in 1981, the prior owners of the Phillips Property – the Andersons – gave her grandfather Easement Deed to use the road through the Phillips Property and into the Rader Property. (FACC ¶ 9; 12.) Rader alleges that in exchange for the Easement Deed, her grandfather agreed that the Andersons could erect a gate across the road where it entered the Phillips Property to prevent general public access and to protect animals, but that the Andersons could not use the gate to keep her grandfather out. (*Id.* ¶ 18.) The grandfather placed his name and street number on the gate but such sign was apparently removed by the Plaintiffs. (*Ibid.*)

In 2000, the Andersons deeded the Phillips Property to the Trust of Kelly Lynn's parents, Norman and Shirley Cupler. (FACC ¶ 12.) The Rader alleges that the former owners of the Phillips Property – as well as the Phillips when they purchased it – were on notice of the Easement Deed because Rader's name was on the entry gate to the Phillips Property, the access road leading to the Rader Property, was visible from the Phillips Property, and utilities ran along the access road. (*Ibid.*). Rader alleges that she, and her predecessors, open and notoriously used the access road for fifty years prior to the Phillips attempts to restrict its use. (FACC ¶ 10.)

At some point, Plaintiffs allegedly began blocking access to the road for both Rader, and also for various utility companies. Rader alleges that Plaintiffs took her name off the gate, replaced the locks on the gates, are building a steel barricade across her access points, and have blocked utilities from entering. (FACC ¶ 23.)

On June 23, 2022, Plaintiffs filed the instant action, bringing causes of action against Defendant for 1) Quiet Title, 2) Declaratory Relief, 3) Injunctive Relief, 4) Nuisance, 5) Trespass, and 6) Slander of Title. Defendant filed an Amended Cross-Complaint alleging similar claims on August 18, 2022.

Plaintiffs now move for judgment on the FACC.

II. Legal Standard

A motion for judgment on the pleadings serves the same function as a demurrer but is made after the time for demurrer has expired. (Code Civ. Proc., § 438(c)(2); *Cloud v. Northop Grumman Corp.* (1998) 67 Cal.App.4th 995, 999.) Except as provided by statute, the rules governing demurrers apply. (*Id.*) The court must accept as true the factual allegations of the complaint and must give them a liberal interpretation.